

26TRCV00910 26TRCV00910

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 26TRCV00910 Hearing Date: August 13, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Thursday, August 13, 2026

Calendar No.

PROCEEDINGS

Sanitize

Bros. v. Special Service for Groups, Inc., et al.

26TRCV00910

1. Special Service for Groups, Inc.'s Demurrer to
Complaint

TENTATIVE RULING

Special Service for Groups, Inc.'s Demurrer to
Complaint is overruled.

Background

Plaintiff's Complaint was filed on March 11, 2026. Plaintiff

alleges the following facts. Plaintiff entered into a three year cleaning services agreement with Defendant. Defendant failed to pay the invoices as required. Defendant improperly cancelled the contract and poached Plaintiff's employees. Plaintiff alleges the following causes of action: 1. Breach of Contract; 2. Breach of the Implied Covenant of Good Faith and Fair Dealing; 3. Account Stated; 4. Open Book Account; 5. Intentional Interference with Contractual Relations.

Meet and Confer

Defendant set forth a meet and confer declaration in sufficient compliance with CCP § 430.41. (Decl. Patrick D. Skahan.)

Request for Judicial Notice

Defendant's and Plaintiff's requests for judicial notice are granted.

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193

Cal.App.2d 636, 643-644.) "Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609–610.) Under Code Civil Procedure § 430.10(f), a demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendant demurs to the Complaint and each cause of action pursuant to CCP § 430.10(e) for failure to state sufficient facts to state a cause of action. The demurrer is made on the grounds that Plaintiff is a suspended corporation. "A corporation which has been suspended pursuant to [Revenue and Taxation Code] section 23301 is without capacity to prosecute a civil action while suspended." Welco Construction, Inc. v. Modulux, Inc. (1975) 47 Cal.App.3d 69, 71. "[T]he suspended corporation cannot sell, transfer or exchange real property in California, and contracts entered into during the time of suspension are voidable ... through legal action. [Citation.] ... Nor, during the period of suspension, may the corporation prosecute or defend an action, seek a writ of mandate, appeal from an adverse judgment, or renew a judgment obtained before suspension." Tabarrejo v. Superior Court (2014) 232 Cal.App.4th 849, 862.

However, Plaintiff, via a request for judicial notice, establishes that its corporate status has been revived. "[T]he revival of corporate powers retroactively validates any procedural steps taken on behalf of the corporation in the prosecution or defense of a lawsuit while the corporation was under suspension." Tabarrejo v. Superior Court (2014) 232 Cal.App.4th 849, 862

Thus, the demurrer to the Complaint is overruled.

Defendant is ordered to file and serve an Answer within 10 days of this date.

Plaintiff is ordered to give notice of this ruling.